

25VECV07140 25VECV07140

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 25VECV07140 Hearing Date: September 3, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Jade Cabello Vasquez, et al.,

vs

Plaintiffs,

v.

Jose Trigueros Martinez, et al.

vs

Defendants.

Case Number Department

25VECV07140 107

COURT'S [TENTATIVE]

ORDER RE:

Petition to Confirm Minor's Compromise

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

November 23, 2025, Plaintiff Jade Cabello Vasquez ("Plaintiff") sustained injuries when she was hit by a vehicle. (Complaint p. 5.)

On

December 15, 2025, Plaintiff, a minor by and through her Guardian ad Litem, Caroline Vasquez Fuentes, filed a complaint against Defendants Jose Trigueros Martinez, Yeidi Joalys Colina Aguilar, and Does 1 to 20, alleging causes of action for: (1) motor vehicle; and (2) general negligence.

On

July 28, 2026, Petitioner Caroline Vasquez Fuentes ("Petitioner") filed a petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability (the "Petition"). As of August 31, 2026, no opposition has been filed.

II.

LEGAL

STANDARD

"An agreement to settle or compromise a claim made by a minor 'is valid only after it has been approved, upon the filing of a petition, by the superior court . . . ' in the county where the minor resides or the action could have been brought." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1337.)

"[T]he

protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests. . .

. [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (Goldberg v. Superior Court

(1994) 23 Cal.App.4th 1378, 1382.)

“A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with rules 7.950 or 7.950.5, 7.951, and 7.952.” (Cal. Rules of Court 3.1384(a).) The petition “must be verified by the petitioner and must contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition.” (Cal. Rules of Court, rule 7.950.) “The person petitioning for approval of the compromise of the claim on behalf of the minor or person with a disability and the minor or person with a disability must attend the hearing on the petition unless the court for good cause dispenses with their personal appearance.” (Cal. Rules of Court, rule 7.952(a).)

“An order for the deposit of funds of a minor or a person with a disability, and a petition for the withdrawal of such funds, must comply with rules 7.953 and 7.954.” (Cal. Rules of Court, rule 3.1384(b).)

California Rules of Court, rule 7.955(a) requires the court to use “a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability” and requires that the court “give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events.”

California Rules of Court, rule 7.955(b) sets forth fourteen nonexclusive factors the court may consider in determining a reasonable attorney's fee. Rule 7.955(b)'s factors include,

(1)

The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.

(2)

The amount of the fee in proportion to the value of the services performed.

(3)

The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.

(4)

The amount involved and the results obtained.

(5)

The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6)

The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7)

The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8)

The time and labor required.

(9)

The informed consent of the representative of the minor or person with a disability to the fee.

(10)

The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11)

The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12)

Whether the fee is fixed, hourly, or contingent.

(13)

If the fee is contingent:

(A)

The risk of loss borne by the attorney;

(B)

The amount of costs advanced by the attorney; and

(C)

The delay in payment of fees and reimbursement of costs paid by the attorney.

(14)

Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal.

Rules of Court, rule 7.955(b).)

“A petition requesting

court approval and allowance of an attorney’s fee under (a) must include a declaration from the attorney that addresses the factors listed in (b) that are applicable to the matter before the court.” (Cal. Rules of Court, rule 7.955(c).)

III.

DISCUSSION

The

Petition is properly filed on Form MC-350 and is verified by Petitioner.

(Petition pdf p. 10.) Jade Cabello Vasquez (“Minor Claimant”) was crossing the street when Defendant Yeidi Joalys Colina Aguilar hit Minor Claimant with her vehicle. (Petition ¶ 5 pdf p. 2.) Minor Claimant sustained injuries to her pelvis, hips, head, neck, and spine. (Petition ¶ 6 pdf p. 2.) Minor Claimant received treatment but has recovered completely from her injuries and sustained no permanent injuries. (Petition ¶¶ 7-8 pdf p. 2.)

Minor

Claimant settled with Aguilar and Defendant Jose Trigueros Martinez for \$30,000.00. (Petition ¶ 10 pdf p. 3.)

The

Petition lists no medical expenses. (Petition ¶ 12 pdf p. 4.) The Petition states a notice of the claim was given to the Director of Health Care Services and Petitioner is entitled to a reduction of the Medi-Cal lien. (Petition ¶ 12 pdf p. 4.) Petitioner requests the court reserve jurisdiction over this issue. (Petition ¶ 12 pdf p. 4.)

Minor

Claimant's counsel requests \$7,500.00 in attorneys' fees. (Petition ¶ 13a pdf p. 5.) The retainer for legal services is attached as Attachment 17a. (Petition Attachment 17a pdf pp. 24-26.)

The

balance of the proceeds of the settlement or judgment available for Minor Claimant is \$21,155.64. (Petition ¶ 16 pdf p. 6.) The sum is to be deposited in an insured account, subject to withdrawal only on authorization of the court. (Petition ¶ 18b pdf p. 8.) The name, branch, and address of the depository is specified in Attachment 18b(2). (Petition ¶ 18b pdf p. 8; Attachment 18b(2) pdf p. 28.)

The

Petition contains multiple deficiencies.

The

Petition states Minor Claimant has recovered completely from the injuries and there are no permanent injuries. (Petition ¶ 8a pdf p. 2.) The attached medical report states Minor Claimant is cleared to return to regular physical activities and daily life routines, but it does not state Minor Claimant has recovered completely and there are no permanent injuries. (Petition Attachment 8 pdf p. 12.) Petitioner must submit a report that contains the necessary information.

The

expenses listed in paragraph 13b do not total \$1,344.36. (Petition ¶ 13b pdf p. 5.)

Minor

Claimant's counsel's declaration does not comply with Code of Civil Procedure section 2015.5. (Petition Attachment 13a pdf p. 23.) Minor Claimant's counsel does not state where the declaration was made. (Petition Attachment 13a pdf p. 23.)

Minor

Claimant's counsel's declaration does not sufficiently discuss the factors set forth in California Rules of Court, rule 7.955(b). (Petition Attachment 13a pdf p. 23.)

The

Motion for Order to Reduce Medi-Cal Lien that was filed concurrently with the Petition was not served on the California Department of Health Care Services. The court will address the Petition and Motion for Order to Reduce Medi-Cal Lien when the Motion for Order to Reduce Medi-Cal Lien has properly been served.

IV.

CONCLUSION

For

the foregoing reasons, the Petition is denied.

Dated: September

3, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court